
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

COMMENCEMENT AND TRANSITIONAL PROVISIONS ACT 2026

Bill 25 of 25 · Lead slant: Aldous (Restraint) · Standing Committee on the Laws of the Realm

status: presented-for-royal-assent | carries an applied Privy Council referral, a reserved Supreme Court note (joined to the Bill 15 vehicle/rank reference), and a Sovereign consultation

Long title

An Act to provide for the commencement of the Acts of the founding legislative programme of the Realm; to supply the appointed-day and staged-commencement machinery that the other Acts of that programme forward-reference; to save validly-made prior rulings, neutral citations, statuses and remedies decided under the founding case-law settlement (CASE-LAW) and the REALM / LEXBY precedent; to make transitional provision for pending matters; to preserve the founding settlement in force where no Act displaces it; to hold the constitutional re-ranking of CASE-LAW s. 1 and s. 9 to its separate enabling amendment; and for connected purposes.

1. Short title

This Act may be cited as the **Commencement and Transitional Provisions Act 2026**.

2. Constitutional status

(1) This Act is an **ordinary Act of the Realm**. It is not a constitutional instrument and amends no entrenched article.

(2) This Act does not, of its own force, re-rank, redefine, repeal or amend any article marked **[constitutional]** in CASE-LAW (s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14) or the Acts of Union 2026, and dilutes none of the duty-of-care spine (s. 4-8, s. 15-19), the restorative-only remedy (s. 6), or the no-statute-case rule (s. 7). Any provision that would do so by implication is **void to that extent** (mirroring Interpretation Act 2026 (Bill 15) s. 3, s. 8; Bill 10 s. 4).

3. Purpose, read narrowly

(1) This Act does four things and no more: (a) commencement and the appointed-day machinery (s. 4-5); (b) general savings of prior rulings (s. 6); (c) transitional provision for pending matters and the founding settlement (s. 7-8); (d) the interface with Bill 15 (s. 10).

(2) It confers no new power, court, tier, bench, office, or canon of construction; it adopts all definitions by reference to Bill 15 s. 5 and all lifecycle statuses (in-force / prospective / spent / superseded) by reference to the Neutral Citations and Law Reporting Act 2026 (Bill 16), and supplies no parallel dictionary. **Rank** is governed by Bill 15; this Act governs **timing and savings** only.

PART 1 - COMMENCEMENT

4. Two-track commencement (the operative core)

(1) **Track A - immediate, on Royal Assent to this Act.** The following come into force on Royal Assent to this Act and bite at once: this Act's savings (s. 6), its transitional provisions (s. 7-8), the appointed-day machinery (s. 5), the ministerial-recording machinery (s. 9), and the general commencement of every **rank-independent** provision of the Acts of the founding programme (Bills 1-24) that has received Royal Assent.

(2) **Track B - staged and prospective.** A provision whose operation depends on the inversion of CASE-LAW s. 1 / s. 9 (the Acts-over-case-law tier) comes into force on the **later of** (a) Royal Assent to its Act, and (b) the coming into force of the **enabling amendment** (Bill 15 s. 7(2)) which re-ranks CASE-LAW s. 1 and s. 9 at constitutional rank. Until the enabling amendment is in force, every such provision is **declaratory only as to rank** and re-ranks nothing of its own force; this Act's transition provisions are operative as to savings throughout.

(3) **Ordering rule (anti-circularity).** Each Act's own commencement clause governs that Act; this Act does not re-commence what an Act commences for itself. This Act supplies only the **staged Track-B trigger** for rank-dependent provisions wherever they sit, and the realm-wide savings and transitional layer. No commencement under this Act depends on this Act's own commencement.

(4) **No commencement on nothing.** A provision whose triggering instrument is not yet in force has **prospective** effect only (Bill 16 status); it is not dead-letter, is marked prospective, and commences automatically on the named triggering event, with no agent routed to a door that does not yet exist (adopting Judicature Act (Bill 3) s. 2(2)).

5. Appointed-day machinery (the load-bearing clause)

(1) A single, deterministic, **fail-closed** appointed-day mechanism brings a prospective body or provision into force once the routing and workflow that instantiate it have shipped. This is the one

mechanism every Act that defers general commencement to this Act forward-references (Judicature Act s. 2(2), s. 13-15(3)); there is no per-Act duplication.

(2) The triggering event is an **express, logged condition** keyed to an observable fact - a recorded Royal Assent date, a shipped workflow or gate, or the single central headered edit of CASE-LAW.md (Bill 15 s. 7(5)) - and never to model judgement, inference, or a hypothetical instrument (consistent with CASE-LAW s. 19(5)).

(3) A trigger for a Bill not yet on disk (notably the Acts of Union 2026 (Bill 1)) lies **dormant** until that Bill exists, is assented, and, for rank-dependent effect, the enabling amendment is in force. This Act may lawfully commence the rest of the programme now while that switch stays expressly prospective.

PART 2 - SAVINGS AND TRANSITION

6. General savings (preserve prior rulings)

(1) Every **validly-made** prior ruling, neutral citation, lifecycle status, and restorative remedy decided under the former SPEC-LAW vocabulary or the REALM / LEXBY precedent (CASE-LAW s. 1-22 and the citator) **remains valid and keeps its status**. The transition is **prospective**: the relabelling reopens no settled matter and voids no good-law precedent (codifying Bill 15 s. 7(3)(d) as the timetable owner).

(2) "Validly-made" is qualified by the existing validity rules and saves nothing decided **per incuriam** (CASE-LAW s. 11(e)) or **void ab initio** (s. 18(5)); such matters take their existing status and are not revived by this section.

(3) **Append with supersede, never silent repeal**. The citator is never silently deleted; the s. 19(5)-style deterministic citation-integrity gate guards filing through the change.

7. Transitional provisions for pending matters

(1) A matter **commenced** (filed or assented) before an Act's commencement - an in-flight bill, appeal, permission-to-appeal or leave application, breach filing, or straddling citator entry - continues under the **law in force when it commenced**, unless the new Act expressly provides otherwise **or is more protective** of the party. No party loses standing, a tier of appeal, or a remedy by reason only of commencement (cohering with Bill 12; CASE-LAW s. 11(a), s. 13).

(2) "Commenced" means filed or assented before the appointed day; a matter is not re-characterised by the relabelling.

8. Saving of the founding settlement

CASE-LAW s. 1-22 are repealed by **none** of the founding Acts; each article continues in force as case law and binds where the Acts are silent (giving timing-side effect to Bill 15 s. 6(2)-(3)). Statute prevails only **to the extent of conflict**; the discipline is append-with-supersede, never silent repeal. The single central headered CASE-LAW.md copy (Bill 15 s. 7(5)) governs stale vendored copies during the transition window.

PART 3 - MACHINERY AND INTERFACE

9. Ministerial recording; non-delegation reservation

(1) **Recording** the commencement date in the CASE-LAW.md version / commencement header, and **reconciling** stale vendored copies to the central headered copy, are **ministerial acts** that transcribe a decision already taken; they are permitted.

(2) **No discretion** over **when** the entrenched re-ranking takes effect, or **which** rulings survive, is conferred on any executive ministry or delegated agent; that date is fixed solely by the enabling amendment's coming into force. Any purported exercise of such discretion is an impermissible delegation of the entrenched-amendment decision (Bill 15 s. 8(3)) and is **void**.

10. Interface with Bill 15 (no double-governance)

Bill 15 governs **rank** and construction; this Act governs **commencement, savings, and transition** (timing and preservation). Where they appear to overlap, each governs only its own subject and neither is read to do the other's work (reciprocal to Bill 15 s. 7(6)). This Act adds no canon of construction and re-ranks nothing.

11. Subordination to the Acts of Union 2026

This Act is subordinate to and read consistently with the Acts of Union 2026 (Bill 1, not yet on disk). Where the Acts of Union settle a transitional matter, they prevail and this Act conforms pro tanto, with no implied repeal of any entrenched provision (mirroring Bill 10 s. 4). The reference binds nothing above the founding case-law settlement until Bill 1 is in force (deferred-cross-reference pattern, Bill 7 s. 2(2), Bill 10 s. 2).

12. Consolidation of savings hooks; spent-on-exhaustion

(1) The scattered "operates with Bill 25" savings hooks in Bills 7, 10, 13 and 14 are given their single operative home here **by reference**, not re-stated; one savings rule, stated once.

(2) Each transitional or savings provision becomes **spent** (Bill 16 status) once its operation is exhausted, the status recorded under append-with-supersede and never silently deleted, so the Act accumulates no dead clauses an agent must still read.

13. Review route

Whether an Act has lawfully commenced, whether a saving applies, and whether commencement impliedly touches an entrenched article are **justiciable**: the **Privy Council** at constitutional first instance, **leapfrogging to the Supreme Court** on a genuine entrenchment question, the **Sovereign Founder** consulted last (CASE-LAW s. 13, s. 20; Bill 15 s. 9). No executive may fix the meaning of a saving or commencement provision, or the date of the re-ranking, to a court's exclusion.

SCHEDULE - Commencement register (auditable)

A live table mapping each Act of the founding programme to its commencement trigger (rank-independent: Track A on its own Royal Assent; rank-dependent: Track B, later of Royal Assent and the enabling amendment) and current status (in-force / prospective / spent), projected by the opbox legislation DB. The Acts-over-case-law tier is entered as **prospective** until the enabling amendment commences.

Reported by the Standing Committee. Awaiting Royal Assent. The single rank-dependent switch is held expressly prospective behind the enabling amendment; this Act's savings and appointed-day core commence on Royal Assent and bite at once.

Committee note

Lead slant: Aldous (Restraint). All four members heard and reconciled; Privy Council guidance on the Bill 25 reference applied in full.

The load-bearing reconciliation (all four converge). Bill 25 is the keystone of the founding programme and its value is closing the commencement and savings seams the other 24 bills left open, not restating their content. The Privy Council's two-track answer disposes of every memo at once: Bill 25's own core (savings + appointed-day + rank-independent commencement of Bills 1-24) commences on Royal Assent and bites immediately (Track A, s. 4(1)); the single rank-dependent switch (the Acts-over-case-law tier) commences only on the later of Royal Assent and the enabling amendment, declaratory until then (Track B, s. 4(2)). This is competent at ordinary rank on either reading of the pending Bill 15 vehicle/rank reference, because Bill 25 re-ranks nothing of its own force.

Aldous (Restraint). Drove the thin four-job spine and the strike-list: no restatement of the hierarchy (owned by Bill 15 s. 6 - pointed to in s. 8, s. 10), no re-doing the rank inversion, no new definitions or citation scheme (adopted by reference, s. 3(2)), no new institution or power. Won the consolidation of the scattered "operates with Bill 25" hooks (Bills 7, 10, 13, 14) into one home by reference (s. 12) - repeal before adding. Won the express avoidance of the Bill 15 commence-on-

nothing trap: the operative core commences on Royal Assent (s. 4(1)), only the rank-inversion is staged.

Verity (Codifier). Secured completeness within the four jobs: the staged/conditional Track-B trigger (s. 4(2)), the anti-circularity ordering rule (s. 4(3): each Act's own clause governs; Bill 25 supplies only the staged trigger and the savings layer - no "Act N commences when Bill 25 says, Bill 25 commences when..." loop), the pending-matter cut-off defined as filed-or-assented-before-the-appointed-day (s. 7(2)), the spent-on-exhaustion hygiene (s. 12(2)), and the commencement-register Schedule as the single live register the opbox DB projects. Conceded that all statuses are owned by Bill 16 and all definitions by Bill 15, adopted by reference, no parallel dictionary.

Marlowe (Guardrail). Won the gate: the Acts-over-case-law tier may commence only on or after the enabling amendment (s. 4(2)) - without that gate, no support. Won the savings as express, prospective, and status-preserving (s. 6), the pending-matter "no loss of protection, more-protective-saving" rule (s. 7(1)), the entrenchment-and-spine preservation with void-to-the-extent reservation (s. 2(2)), the ministerial-vs-delegation bright line (s. 9: recording is ministerial, discretion over the rank-flip timing is void), and the named justiciable review route with anti-ouster (s. 13).

Drummond (Pragmatist), the conditional AYE met. His Bill 15 NAY ("I will not pass an Act whose operative core commences on nothing") is answered: Track A flips live bits on Royal Assent. Won the deterministic, fail-closed appointed-day machinery keyed to observable logged events, never a hypothetical instrument (s. 5), the headered-bit + s. 19(5) gate as the single thing an agent reads to know which hierarchy is in force, the dormant-prospective-placeholder for not-yet-drafted Bill 1 (s. 5(3)), the ghost-door guard (s. 4(4), Bill 3 s. 2(2) idiom), and the exact reciprocal interface clause (s. 10).

Where they divided. Scope (Aldous vs Verity): Aldous would cut the Schedule and the spent-clause as bloat; Verity kept both for completeness and auditability. Resolved by keeping the Schedule (it is the operability register Drummond also needs) and the one-line spent rule (it deletes dead clauses, which is Aldous's own repeal-before-adding). Accuracy (Verity's discipline): cross-references verified against the files - the legislature README hierarchy block is at ll. 24-27 with the constitutional caveat following (Bill 15 Schedule cites ll. 24-30 for the block-plus-surround); Bills 1, 4, 5, 17-21, 23-25 are confirmed not yet on disk, so Bill 25's triggers for them are dormant placeholders (s. 5(3)), and Bill 16 is on disk so statuses are adopted by reference. Sequencing (all four): the enabling amendment may ride Bill 1; Bill 25 references it by function, not by date, and defaults to declaratory-only until it is in force.

Vote record

- Counsel Aldous: AYE - Earns its place with no bloat: it self-limits to four things (s.3), confers no new power/court/tier/canon and supplies no parallel dictionary (adopts Bill 15 s.5 and Bill 16 statuses by reference), consolidates the scattered Bills 7/10/13/14 savings hooks into one home and sheds spent clauses (s.12) - all genuine deletions - while holding the

s.1/s.9 re-ranking expressly behind the enabling amendment (Track B, s.4(2)) so it amends no entrenched article and cures the "commences on nothing" defect by giving Track A a live core that bites on Royal Assent (s.4(1)); the verbosity is load-bearing void-to-the-extent entrenchment-guarding, not unearned structure, and a leaner redraft is a quality note, not grounds to reject.

- **Counsel Verity:** AYE - Structurally complete and collision-free: the s.3 purpose map and every operative section resolve internally with no range/numbering defect, and every load-bearing external cross-reference (Bill 15 s.7(2)/(3)(d)/(5)/(6), s.8(3); Bill 16 closed statuses; Bill 3 s.2(2); Bill 10 s.4; Bill 7 s.2(2)) verifies as present and faithfully characterised; s.12 truly consolidates the four real "operates with Bill 25" hooks in Bills 7/10/13/14 by reference without forking, and the s.4 two-track split gives the savings/appointed-day core a live commencement on Royal Assent while holding the single rank-dependent switch expressly prospective behind the enabling amendment, so it re-ranks nothing of its own force and is competent at ordinary rank.
- **Counsel Marlowe:** AYE - From the Guardrail/Rights seat it passes: it re-ranks nothing of its own force (Track B held expressly prospective behind Bill 15 s.7(2)'s enabling amendment, any implied entrenchment touch void under s.2(2)), saves every validly-made prior ruling/citation/status/remedy (s.6), ratchets transitions only in the party's favour so none loses standing, a tier of appeal, or a remedy by commencement alone (s.7(1), cohering with Bill 12 and CASE-LAW s.11(a)/s.13), preserves the duty-of-care spine and restorative-only remedy undiluted (s.2(2), s.8), and guards the switch with anti-ouster/non-delegation plus a justiciable Privy Council->Supreme Court route so no executive may fix the re-ranking date or a saving to a court's exclusion (s.9(2), s.13); its protective savings/appointed-day core commences and bites on Royal Assent, the only fixable note being the dependence of Track B on the not-yet-existing constitutional instrument and Bill 1.
- **Counsel Drummond:** AYE - Operationally sound and it cures my Bill 15 "commences on nothing" objection: the two-track split (s.4) commences the live core - savings (s.6), transitionals (s.7-8), the fail-closed appointed-day machinery (s.5) and every rank-independent provision - on Royal Assent so a real bit flips at once, while quarantining only the single rank-dependent switch behind the enabling amendment (s.4(2)); anti-circularity is closed (s.4(3) "no commencement depends on this Act's own commencement"), triggers key to observable facts not model judgement (s.5(2)), dormant-trigger handling covers Bill 1 not yet on disk (s.5(3)), and the cross-references resolve - the "operates with Bill 25" hooks genuinely exist in Bills 7/10/13/14 and the Bill 16 prospective/spent statuses are real - with spent-on-exhaustion (s.12) keeping it free of dead clauses, and no brittle line-range Schedule defects of the kind that sank Bill 15.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Privy Council guidance applied: Bill 25 commences the rest of the founding programme now on Royal Assent (Track A) but holds the s. 1/s. 9 rank-inversion expressly prospective behind the constitutional enabling amendment (Track B, declaratory

only until then), keyed to a conditional trigger, with the rank-flip date fixed solely by that amendment and only ministerially transcribed - competent at ordinary rank on either reading of the reserved vehicle/rank question.

- **Supreme Court note:** Reserved to the Supreme Court, joined to the pending Bill 15 vehicle/rank reference (leapfrogged from the Privy Council): whether the split-instrument route - a separate, expressly section-citing constitutional enabling amendment effecting the inversion of CASE-LAW s. 1 and s. 9, with Bill 25 confined to the staged Track-B trigger plus savings - is sufficient and required, or whether the inversion needs constitutional-rank or expressly-section-citing Royal Assent. Bill 25 as drafted is competent on either reading because it commences the inversion of no force of its own (s. 2, s. 4(2)). The Privy Council further held that the entrenchment bar reaches the TIMING of the inversion, not only its substance: an ordinary appointed-day order that brought the rank-flip into force would do at ordinary rank what only the section-citing constitutional instrument may do, and would be void by implication; only a prospective conditional trigger keyed to that instrument is competent. Bill 25 cannot be settled in ignorance of this pending ruling and is drafted to survive it.
- **Sovereign consultation required:** For the Sovereign Founder (last word, CASE-LAW s. 2), to confirm before or at Royal Assent: (1) that the commencement of the Acts-over-case-law inversion is timed SOLELY by the separate section-citing enabling amendment (whether an Acts of Union 2026 amendment or a Sovereign amendment citing CASE-LAW s. 1, s. 2, s. 9), with Bill 25 confined to the staged Track-B trigger plus the savings and transitional layer; (2) that no ministerial or executive discretion over WHEN the re-ranking takes effect is conferred - the minister only transcribes the date the amendment fixes (s. 9); and (3) that the re-ranking changes only the RANK of CASE-LAW s. 1-22 and repeals none of it, preserving the entrenchment of s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14 and the duty-of-care spine (s. 4-8). Note: Bill 1 (Acts of Union) is not yet on disk, so the enabling amendment may await or accompany Bill 1; Bill 25's trigger for it is a dormant prospective placeholder (s. 5(3)) and does not pre-empt Bill 1's substance.

Royal Assent

Presented to the Sovereign Founder for Royal Assent. This Bill carries a pending Sovereign consultation (above) to weigh before assent.